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CONGRESS

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

Law No.: 86/2015/QH13

LAW
NETWORK INFORMATION
SECURITY

*Pursuant to the Constitution of the Socialist Republic of Vietnam;
The National Assembly promulgates the Law on Cyber Information Security.*

Chapter I
GENERAL PROVISIONS

Article 1. Scope of adjustment

This Law regulates network information security activities, rights and responsibilities of agencies, organizations and individuals in ensuring network information security; civil code; standards and technical regulations on network information security; doing business in the field of network information security; develop human resources for network information security; State management of network information security.

Article 2. Subjects of application

This Law applies to Vietnamese agencies, organizations, individuals, and foreign organizations and individuals directly participating in or related to cyber information security activities in Vietnam.

Article 3. Explanation of terms

In this Law, the following terms are understood as follows:

1. *Network information security* is the protection of information and online information systems from unauthorized access, use, disclosure, interruption, modification or destruction to ensure the integrity, security and availability of information.

2. *Network* is the environment in which information is provided, transmitted, collected, processed, stored and exchanged through telecommunications and computer networks.

3. *Information system* is a collection of hardware, software and databases established for the purpose of creating, providing, transmitting, collecting, processing, storing and exchanging information on the network.

4. *National important information system* is an information system that, when sabotaged, will cause extremely serious damage to national defense and security.

5 *Information system manager* is an agency, organization or individual with direct management authority over the information system.

6. *Violating network information security* is the act of illegally accessing, using, disclosing, interrupting, modifying, or destroying information and information systems.

7. *Network information security incident* is when information or information systems are harmed, affecting the integrity, security or availability.

8. *Network information security risks* are subjective or objective factors that can affect the state of network information security.

9. *Assess network information security risks* is the detection, analysis, and estimation of the level of damage and threats to information and information systems.

10. *Managing network information security risks* is the introduction of measures to minimize network information security risks.

11. *Malware* is software that has the ability to cause abnormal operation of part or all of the information system or to illegally copy, modify, or delete information stored in the information system.

12. *Malware filtering system* is a collection of hardware and software connected to the network to detect, prevent, filter and compile malware statistics.

13. *Electronic address* is the address used to send and receive information online, including email addresses, phone numbers, Internet addresses and other similar forms.

14. *Information conflict* is the use of technological and information technology measures by two or more domestic and foreign organizations to damage information and information systems online.

15. *Personal information* is information associated with determining the identity of a specific person.

16. *Subject of personal information* is the person identified from that personal information.

17. *Processing of personal information* is the performance of one or several operations of collecting, editing, using, storing, providing, sharing, and distributing personal information online for commercial purposes.

18. *Civil code* is a cryptographic technique and cryptographic product used to secure or authenticate information that is not a state secret.

19. *Network information security products* is hardware and software that has the function of protecting information and information systems.

20. *Network information security service* is an information protection service and information system.

Article 4. Principles of ensuring network information security

1. Agencies, organizations and individuals are responsible for ensuring network information security. Cyber information security activities of agencies, organizations and individuals must comply with the provisions of law, ensure national defense, national security, state secrets, maintain political stability, social order and safety and promote socio-economic development.

2. Organizations and individuals are not allowed to violate the network information security of other organizations or individuals.

3. The handling of network information security incidents must ensure the legitimate rights and interests of organizations and individuals, and must not violate the privacy, personal secrets, family secrets of individuals, or the organization's private information.

4. Network information security activities must be carried out regularly, continuously, promptly and effectively.

Article 5. State policy on network information security

1. Promote training and human resource development and build infrastructure and network information security techniques to meet the requirements of political stability, socio-economic development, ensuring national defense, national security, social order and safety.

2. Encourage research, development, and application of technical and technological measures, export support, and market expansion for cyber information security products and services produced and provided by domestic organizations and individuals; create conditions for importing modern products and technologies that domestic organizations and individuals do not have the capacity to produce or supply.

3. Ensure a healthy competitive environment in the business of cyber information security products and services; Encourage and create conditions for organizations and individuals to invest, research, develop and provide cyber information security products and services.

4. The State allocates funds to ensure network information security of state agencies and network information security for important national information systems.

Article 6. International cooperation on network information security

1. International cooperation on cyber information security must comply with the following principles: a) Respect national independence, sovereignty and territorial integrity, non-interference in each other's internal affairs, equality and mutual benefit; b)

In accordance with the provisions of Vietnamese law and international treaties to which the Socialist Republic of Vietnam is a member.

2. The content of international cooperation on cyber information security includes:

- a) International cooperation in training, research and application of science, engineering and technology in cyber information security;
- b) International cooperation in preventing and combating violations of laws on network information security; Investigate and handle network information security incidents, prevent activities taking advantage of the network for terrorism;
- c) Other international cooperation activities on network information security.

Article 7. Prohibited acts

1. Prevent the transmission of information online, interfere with, access, cause harm, delete, change, copy and falsify information online illegally.
2. Illegally influencing or obstructing the normal operation of the information system or the user's ability to access the information system.
3. Illegally attacking or disabling the information system's network information security protection measures; Attack, hijack, and sabotage information systems.
4. Spreading spam, malware, setting up fake information systems and scams.
5. Illegally collecting, using, distributing, and trading other people's personal information; Taking advantage of loopholes and weaknesses of the information system to collect and exploit personal information.
6. Illegally invading secret passwords and legally encrypted information of agencies, organizations, and individuals; disclosing information about civil cryptographic products, information about customers legally using civil cryptographic products; Using and trading civil cryptographic products of unknown origin.

Article 8. Handling of violations of the law on network information security

Any person who violates the provisions of this Law shall, depending on the nature and severity of the violation, be disciplined, administratively sanctioned or prosecuted for criminal liability; If causing damage, compensation must be made according to the provisions of law.

Chapter II

ENSURE NETWORK INFORMATION SECURITY

Section 1

PROTECT NETWORK INFORMATION

Article 9. Information classification

1. Agencies and organizations that own information classify information according to confidential attributes to take appropriate protection measures.

2. Information within the scope of state secrets is classified and protected according to the provisions of law on protection of state secrets.

Agencies and organizations that use classified and unclassified information in activities in their fields must be responsible for developing regulations and procedures to handle information; Determines the content and methods of recording permitted access to classified information.

Article 10. Information sending management

1. Sending information online must ensure the following requirements: a) Do not falsify the origin of sending information; b) Comply with the provisions of this Law and other relevant laws.
2. Organizations and individuals are not allowed to send commercial information to the recipient's electronic address without the recipient's consent or when the recipient has refused, unless the recipient is obligated to receive the information according to the provisions of law.
3. Telecommunications businesses, businesses providing telecommunications application services and businesses providing information technology services that send the following responsible information:
 - a) Comply with legal regulations on information storage and protection of personal information and private information of organizations and individuals;
 - b) Apply preventive and handling measures when receiving notices from organizations or individuals about sending information in violation of the law;
 - c) There is a method for the recipient of information to refuse to receive information;
 - d) Provide necessary technical and professional conditions for competent state agencies to perform management tasks and ensure network information security when required.

Article 11. Prevention, detection, blocking and handling of malware 1.

Agencies, organizations and individuals are responsible for preventing and blocking malware according to the instructions and requirements of competent state agencies.

2. The administrator of the national important information system deploys a technical and professional system to prevent, detect, block and promptly handle malicious software.

3. Enterprises providing email, transmission, and information storage services must have a malware filtering system in the process of sending, receiving, and storing information on their systems and report to competent state agencies according to the provisions of law.

4. Internet service providers have measures to manage, prevent, detect and stop the spread of malware and handle them at the request of competent state agencies.

5. The Ministry of Information and Communications presides over and coordinates with the Ministry of National Defense, the Ministry of Public Security and relevant ministries and branches to organize the prevention, detection, blocking and handling of malware that affects national defense and national security.

Article 12. Ensuring safety of telecommunications resources

1. Agencies, organizations and individuals using telecommunications resources have the following responsibilities:

a) Apply management and technical measures to prevent network information insecurity stemming from your frequencies, number stores, domain names and Internet addresses;

b) Coordinate and provide information related to telecommunications resource safety at the request of competent state agencies.

2. Enterprises providing services on the Internet are responsible for managing and coordinating to prevent loss of network information security originating from Internet resources and from their customers; Provide full information as requested by competent state agencies; Coordinate connection and routing to ensure the safe and stable operation of Vietnam's national domain name server system.

3. The Ministry of Information and Communications is responsible for ensuring network information security for the Vietnamese national domain name server system.

Article 13. Responding to network information security incidents

1. Responding to network information security incidents is an activity aimed at handling and overcoming incidents causing loss of network information security.

2. Responding to network information security incidents must comply with the following principles:

a) Timely, fast, accurate, synchronous and effective;

b) Comply with legal regulations on coordination of response to network information security incidents;

c) There is coordination between domestic and foreign agencies, organizations and enterprises.

3. Ministries, ministerial-level agencies, Government agencies, provincial-level People's Committees, telecommunications enterprises, and owners of important national information systems must establish or designate a specialized department to respond to network information security incidents.

4. The Ministry of Information and Communications is responsible for coordinating response to cyber information security incidents nationwide; Detailed regulations on coordination of response to network information security incidents.

Article 14. Emergency response to ensure national network information security

1. Emergency response to ensure national network information security is an incident response activity in a disaster situation or at the request of a competent state agency to ensure national network information security.

2. Emergency response to ensure national network information security must comply with the following principles:

- a) Organize implementation according to decentralization;
- b) Implementation on the spot, quickly, strictly, and in close coordination;
- c) Apply technical measures to ensure effectiveness and feasibility.

3. System of emergency response plans to ensure national network information security includes:

- a) Emergency response plan to ensure national network information security;
- b) Emergency response plan to ensure network information security of state agencies, political organizations, and socio-political organizations;
- c) Emergency response plan to ensure local network information security;
- d) Emergency response plan to ensure network information security of telecommunications enterprises.

4. Responsibility for ensuring national network information security is prescribed as follows: a) The Prime Minister decides on a system of emergency response plans to ensure national network information security;

b) The Ministry of Information and Communications is responsible for presiding over coordination of emergency response work to ensure national network information security;

c) Ministries, branches, People's Committees at all levels and relevant agencies and organizations, within the scope of their duties and powers, are responsible for coordinating and directing emergency response to ensure national network information security;

d) Telecommunications enterprises are responsible for implementing emergency response measures and coordinating with the Ministry of Information and Communications, relevant ministries, branches, and People's Committees at all levels to ensure national network information security.

Article 15. Responsibilities of agencies, organizations and individuals in ensuring network information security

1. Agencies, organizations and individuals participating in network information security activities are responsible for coordinating with competent state agencies and other organizations and individuals in ensuring network information security.

2. Agencies, organizations and individuals using online services are responsible for promptly notifying service providers or specialized incident response departments when detecting acts of sabotage or network information security incidents.

Section 2
PROTECTION OF PERSONAL
INFORMATION

Article 16. Principles of protecting personal information online

1. Individuals protect their personal information and comply with the law on providing personal information when using online services.

2. Agencies, organizations and individuals handling personal information are responsible for ensuring network information security for the information they process.

3. Organizations and individuals handling personal information must develop and publicly announce measures to handle and protect personal information of their organizations and individuals.

4. The protection of personal information is carried out in accordance with the provisions of this Law and other relevant laws.

5. Processing of personal information for the purpose of ensuring national defense, national security, social order and safety or for non-commercial purposes is carried out in accordance with other relevant laws.

Article 17. Collection and use of personal information

1. Organizations and individuals handling personal information have the following responsibilities:

a) Collect personal information after obtaining the consent of the personal information subject on the scope and purpose of collecting and using that information;

b) Only use collected personal information for purposes other than the original purpose after obtaining the consent of the personal information subject;

c) Do not provide, share, or distribute personal information that you have collected, accessed, or controlled to a third party, except with the consent of the subject of that personal information or at the request of a competent state agency.

2. State agencies are responsible for securing and storing personal information they collect.

3. Personal information subjects have the right to request organizations and individuals processing personal information to provide their personal information that that organization or individual has collected and stored.

Article 18. Update, amend and cancel personal information

1. The subject of personal information has the right to request organizations and individuals processing personal information to update, modify, and destroy personal information that that organization or individual has collected, stored, or stop providing personal information to third parties.

2. Upon receiving a request from the subject of personal information to update, amend, cancel personal information or request to stop providing personal information to third parties, organizations and individuals handling personal information have the following responsibilities:

a) Make requests and notify personal information subjects or provide personal information subjects with access to update, modify, or cancel their personal information;

b) Apply appropriate measures to protect personal information; Notify the subject of personal information in case the request cannot be fulfilled due to technical or other factors.

3. Organizations and individuals handling personal information must destroy stored personal information when the purpose of use has been completed or the storage period expires and notify the subject of personal information, unless otherwise prescribed by law.

Article 19. Ensuring the safety of personal information online

1. Organizations and individuals handling personal information must apply appropriate management and technical measures to protect the personal information they collect and store; Comply with standards and technical regulations on ensuring network information security.

2. When a network information security incident occurs or is at risk of occurring, organizations and individuals handling personal information need to apply remedial and preventive measures as soon as possible.

Article 20. Responsibilities of state management agencies in protecting personal information online

1. Establish an online information channel to receive recommendations and feedback from organizations and individuals related to ensuring the safety of personal information online.

2. Annually organize inspection and examination of organizations and individuals handling personal information; Organize unexpected inspections and tests in case of necessity.

**Section 3
INFORMATION SYSTEM
PROTECTION**

Article 21. Classification of information system security levels

1. Classification of information system security level is the determination of the information security level of an information system in increasing levels from 1 to 5 to apply management and technical measures to protect the information system appropriately according to the level.

2. Information systems are classified according to safety levels as follows:

a) Level 1 is the level where, when sabotaged, it will harm the legitimate rights and interests of organizations and individuals but will not harm public interests, social order, safety, national defense and security;

b) Level 2 is the level where, when sabotaged, it will seriously harm the legitimate rights and interests of organizations and individuals or harm public interests but does not harm social order, safety, national defense and security;

c) Level 3 is the level where, when sabotaged, it will seriously damage production, public interests, social order and safety, or harm national defense and security;

d) Level 4 is the level where, when sabotaged, it will cause extremely serious harm to public interests, social order and safety, or seriously harm national defense and security;

d) Level 5 is the level where, when sabotaged, it will cause extremely serious damage to national defense and security.

3. The Government regulates in detail the criteria, authority, order and procedures for determining information system security levels and responsibilities for ensuring information system security at each level.

Article 22. Duty to protect information systems

1. Determine the information security level of the information system.
2. Assess and manage information system security risks.
3. Urging, supervising and inspecting the protection of information systems.
4. Organize and deploy measures to protect information systems.
5. Implement reporting regime according to regulations.
6. Organize propaganda and raise awareness about network information security.

Article 23. Information system protection measures

1. Issue regulations on ensuring network information security in the design, construction, management, operation, use, upgrade and destruction of information systems.
2. Apply management and technical measures according to network information security standards and technical regulations to prevent and combat risks and overcome network information security incidents.
3. Inspect and monitor compliance with regulations and evaluate the effectiveness of applied technical and management measures.
4. Monitor information system security.

Article 24. Information system safety monitoring

1. Information system safety monitoring is the activity of selecting monitoring objects, collecting and analyzing information status of monitored objects to determine factors affecting information system safety; Report and warn of acts that violate network information security or acts that are likely to cause network information security incidents in information systems; Conduct analysis of key factors affecting the state of network information security; Propose changes to technical measures.
2. Objects of information system security monitoring include firewalls, access controls, key information routes, important servers, important devices or important terminals.
3. Telecommunications enterprises, enterprises providing information technology services, enterprises providing network information security services are responsible for coordinating with information system owners in monitoring information system safety at the request of competent state agencies.

Article 25. Responsibilities of information system administrators

1. The information system owner is responsible for protecting the information system according to the provisions of Articles 22, 23 and 24 of this Law.

2. The administrator of the information system using the state budget shall carry out the responsibilities specified in Clause 1 of this Article and have the following responsibilities:

- a) Have a plan to ensure network information security evaluated by a competent state agency when establishing, expanding or upgrading the information system;
- b) Appoint individuals and departments in charge of network information security.

Article 26. National important information system

1. When establishing, expanding and upgrading important national information systems, information security testing must be carried out before being put into operation and exploitation.
2. The Ministry of Information and Communications shall preside over and coordinate with the Ministry of National Defense, the Ministry of Public Security and relevant ministries and branches to develop a List of important national information systems to submit to the Prime Minister for promulgation.

Article 27. Responsibility to ensure network information security for important national information systems

1. The administrator of a national important information system has the following responsibilities:
 - a) Implement the provisions in Clause 2, Article 25 of this Law;
 - b) Periodically assess network information security risks. The assessment of network information security risks must be performed by a specialized organization designated by a competent state agency;
 - c) Implement backup measures for information systems;
 - d) Make protection plans, make plans and rehearse plans to protect important national information systems.
2. The Ministry of Information and Communications has the following responsibilities:
 - a) Preside and coordinate with the administrator of important national information systems, the Ministry of Public Security and relevant ministries and branches to guide, urge, inspect and examine network information security protection for important national information systems, except for information systems specified in Clauses 3 and 4 of this Article;
 - b) Request telecommunications businesses, information technology service providers, and network information security service providers to participate in consulting, technical support, and rescue of network information security incidents for important national information systems.
3. The Ministry of Public Security presides over guiding, urging, inspecting and examining the work of protecting network information security for important national information systems managed by the Ministry of Public Security;

Coordinate with the Ministry of Information and Communications, manager of important national information systems, relevant ministries, branches, and People's Committees at all levels in protecting other important national information systems when requested by competent state agencies.

4. The Ministry of National Defense presides over guiding, urging, inspecting and examining the work of protecting network information security for important national information systems managed by the Ministry of National Defense.

5. The Government Cipher Committee presides over the implementation of solutions using cryptography to protect information in important national information systems of state agencies, political organizations, and socio-political organizations; Coordinate with administrators of important national information systems in monitoring network information security according to the provisions of law.

Section 4

PREVENT INFORMATION CONFLICT ON THE NETWORK

Article 28. Responsibilities of organizations and individuals in preventing information conflicts online

1. Organizations and individuals, within the scope of their duties and powers, have the following

responsibilities: a) Prevent destructive information originating from their information systems; cooperate in identifying the source, repelling and overcoming the consequences of cyber attacks carried out through the information systems of domestic and foreign organizations and individuals; b) Prevent actions of domestic and foreign organizations and individuals with the purpose of

sabotaging the integrity of the network; c) Eliminate the organization of illegal online activities that seriously affect national defense, national security, social order and safety of domestic and foreign organizations and individuals.

2. The Government provides detailed regulations on preventing information conflicts online.

Article 29. Preventing activities using the network for terrorism

1. Measures to prevent the use of the Internet for terrorism include: a) Disabling Internet resources used to commit terrorist acts; b)

Prevent the establishment and expansion of information exchange about signals, factors, methods and ways of using the Internet to commit terrorist acts, about the goals and activities of terrorist organizations online;

c) Exchange experiences and practices in controlling Internet sources, finding and controlling the content of websites with terrorist purposes.

2. The Government provides detailed regulations on implementation responsibilities and measures to prevent the use of networks for terrorism specified in Clause 1 of this Article.

Chapter III

CIVIL CODE

Article 30. Civil cryptographic products and services

1. Civil cryptographic products are documents, technical equipment and cryptographic operations to protect information that is not within the scope of state secrets.

2. Civil cryptography services include information protection services using civil cryptography products; testing and evaluating civil cryptographic products; Consulting on security and network information security using civil cryptographic products.

Article 31. Trading in civil cryptographic products and services

1. Enterprises must have a License to trade in civil cryptography products and services when trading in civil cryptography products and services on the List of civil cryptography products and services.

2. Enterprises are granted a License to trade in civil cryptographic products and services when they fully meet the following conditions:

- a) Have a management, administration, and technical team that meets professional requirements for information security and safety;
- b) Have a system of equipment and facilities appropriate to the scale of providing civil cryptographic products and services;
- c) Have a technical plan in accordance with standards and technical regulations;
- d) Have a plan for network information security and safety in the process of managing and providing civil cryptographic products and services;
- d) Have a suitable business plan.

3. Civil cryptographic products must be tested and certified as conforming to regulations before being circulated on the market.

4. Enterprises granted a License to trade in civil cryptographic products and services must pay fees according to the provisions of law on fees and charges.

5. The Government promulgates the List of civil cryptographic products and services and details this Article.

Article 32. Order and procedures for applying for a License to trade in civil cryptographic products and services

1. Enterprises applying for a License to trade in civil cryptographic products and services submit an application for a License at the Government Cipher Committee.

2. Dossier to request a License to trade in civil cryptographic products and services is made in two sets, including:

- a) Application for a License to trade in civil cryptographic products and services;
- b) Copy of Business Registration Certificate or Investment Registration Certificate or other documents of equivalent value;

c) Copies of diplomas or professional certificates in information security and safety of the management, executive, and technical team;

d) Technical plan includes documents on technical characteristics and technical parameters of the product; product standards and technical regulations; service standards and quality; technical measures and solutions; product warranty and maintenance plan;

d) Plan for network information security and safety in the process of managing and providing civil cryptographic products and services;

e) Business plan including scope, suppliers, scale of product quantity, customer service system and technical assurance.

3. Within 30 days from the date of receipt of complete dossier, the Government Cipher Committee shall appraise and issue a Business License for civil cryptographic products and services; In case of refusal, it must be notified in writing and clearly state the reason.

4. The license to trade in civil cryptographic products and services is valid for 10 years.

Article 33. Amending, supplementing, reissuing, extending, suspending and revoking the License to trade in civil cryptographic products and services

1. Amendments and supplements to the License to trade in civil cryptographic products and services are carried out in cases where the licensed enterprise changes its name, changes its legal representative or changes or supplements its civil cryptographic products and services.

Enterprises are responsible for submitting documents requesting amendments and supplements to the License at the Government Cipher Committee. The dossier is made into two sets, including:

- a) Application for amendment and supplementation of License;
- b) Copy of Business Registration Certificate or Investment Registration Certificate or other documents of equivalent value;
- c) License to trade in civil cryptographic products and services has been issued;
- d) Technical plan, network information security and safety plan, business plan for additional products and services as prescribed in Points d, dd and e, Clause 2, Article 32 of this Law in case the enterprise requests additional civil cryptographic products and services, business lines and lines;

Within 10 working days from the date of receipt of complete documents, the Government Cipher Committee will appraise, amend, supplement and re-issue the License to the enterprise; In case of refusal, it must be notified in writing and clearly state the reason.

2. In case the License to trade in civil cryptographic products and services is lost or damaged, the enterprise shall send an application to reissue the License, clearly stating the reason, to the Government Cipher Committee. Within 05 working days from the date of receiving the application, the Government Cipher Committee reviews and re-issues the License to the enterprise.

3. Enterprises that do not violate the provisions of law on trading in civil cryptographic products and services may renew their License to trade in civil cryptographic products and services once with an extension period of no more than 01 year.

Dossier requesting license renewal must be sent to the Government Cipher Committee no later than 60 days before the license expiration date. Dossier requesting license extension is made in two sets, including:

- a) Application for license renewal;
 - b) Valid license to trade in civil cryptographic products and services; c)
- Report on the enterprise's activities for the most recent 02 years.

Within 20 days from the date of receipt of complete documents, the Government Cipher Committee will evaluate, decide to extend and re-issue the License to the enterprise; In case of refusal, it must be notified in writing and clearly state the reason.

4. Enterprises are temporarily suspended from trading in civil cryptographic products and services for a period of not more than 06 months in the following cases:

- a) Providing products and services inconsistent with the content stated on the License;
- b) Failure to meet one of the conditions specified in Clause 2, Article 31 of this Law;
- c) Other cases as prescribed by law.

5. Enterprises have their licenses to trade in civil cryptographic products and services revoked in the following cases:

- a) Failure to provide services within 01 year from the date of issuance of the License without a valid reason;
- b) The license has expired;
- c) At the end of the suspension period, the enterprise fails to overcome the reasons specified in Clause 4 of this Article.

Article 34. Export and import of civil cryptographic products

1. When exporting or importing civil cryptographic products on the List of civil cryptographic products exported and imported under license, the enterprise must have a License to export and import civil cryptographic products issued by a competent state agency.

2. Enterprises are granted a License to export and import civil cryptographic products when they fully meet the following conditions:

- a) Have a License to trade in civil cryptographic products and services;
- b) Imported civil cryptographic products must be certified and declared conformable according to the provisions of Article 39 of this Law;
- c) The objects and purposes of using civil cryptographic products do not harm national defense, national security, social order and safety.

3. Application dossier for a License to export and import civil cryptographic products includes: a) Application for a License to export and import civil cryptographic products; b) Copy of License to trade in civil cryptographic products and services;

- c) Copy of Certificate of conformity for imported civil cryptographic products.

4. Within 10 working days from the date of receipt of complete documents, the Government Cipher Committee shall appraise and issue a License to export and import civil cryptographic products to the enterprise; In case of refusal, it must be notified in writing and clearly state the reason.

5. The Government promulgates the List of civil cryptographic products exported and imported under license and detailed regulations of this Article.

Article 35. Responsibilities of enterprises trading in civil cryptographic products and services

1. Manage records and documents on technical and technological solutions of products.

2. Establish, store and secure customer information, name, type, quantity and purpose of use of civil cryptographic products and services.

3. Annually report to the Government Cipher Committee on the situation of business, export, import of civil cryptographic products and services and summarize customer information before December 31.

4. There are measures to ensure security and safety in the transportation and preservation of civil cryptographic products.

5. Refuse to provide civil cryptography products and services when detecting that organizations or individuals violate the law on using civil cryptography products and services, or violate agreed commitments on using products and services provided by the enterprise.

6. Temporarily suspend or stop providing civil cryptographic products and services to ensure national defense, national security, social order and safety at the request of competent state agencies.

7. Coordinate and create conditions for competent state agencies to implement professional measures when required.

Article 36. Responsibilities of organizations and individuals using civil cryptography products and services

1. Comply with the regulations committed to businesses providing civil cryptographic products on management and use of cryptographic keys, transfer, repair, maintenance, disposal, destruction of civil cryptographic products and other related contents.

2. Provide necessary information related to encryption keys to competent state agencies upon request.

3. Coordinate and create conditions for competent state agencies to implement measures to prevent criminals from stealing information, locking codes and using civil cryptographic products for illegal purposes.

4. Organizations and individuals using civil cryptography products not provided by businesses licensed to trade in civil cryptography products must declare to the Government Cipher Committee, except diplomatic representative agencies, consular agencies of foreign countries and representative agencies of intergovernmental international organizations in Vietnam.

Chapter IV

STANDARDS AND TECHNICAL REGULATIONS ON NETWORK INFORMATION SECURITY

Article 37. Technical standards and regulations for network information security

1. Network information security standards include international standards, regional standards, foreign standards, national standards and basic standards for information systems, hardware, software, management systems, and safe operation of network information published and recognized for application in Vietnam.

2. Technical regulations on network information security include national technical regulations and local technical regulations for information systems, hardware, software, management systems, and safe operation of network information that are built, promulgated and applied in Vietnam.

Article 38. Management of standards and technical regulations on network information security

1. Certification of conformity on network information security is a conformity certification organization that certifies that information systems, hardware, software, management systems, and safe operation of network information are in accordance with technical regulations on network information security.

2. Declaration of conformity with network information security regulations means an organization or enterprise declaring the conformity of information systems, hardware, software, management systems, and safe operation of network information with technical regulations on network information security.

3. Certification of conformity to network information security standards is a conformity certification organization that certifies that information systems, hardware, software, management systems, and safe operation of network information are in accordance with network information security standards.

4. Declaration of conformity with network information security standards is an organization or enterprise declaring the conformity of information systems, hardware, software, management systems, and safe operation of network information with network information security standards.

5. The Ministry of Science and Technology shall preside over and coordinate with relevant agencies to organize the appraisal and publication of national standards on network information security in accordance with the law on standards and technical regulations.

6. The Ministry of Information and Communications has the following responsibilities:

a) Develop draft national standards for cyber information security, except for national standards specified in Clause 7 of this Article;

b) Promulgate national technical regulations on network information security, except national standards specified in Clause 7 of this Article; regulations on assessment of conformity with network information security;

c) Manage the quality of network information security products and services, except for civil cryptographic products and services;

d) Register, designate and manage the activities of organizations certifying conformity to network information security, except organizations certifying conformity for civil cryptographic products and services.

7. The Government Cipher Committee is responsible for helping the Minister of National Defense develop draft national standards for civil cryptography products and services and submit them to competent state agencies for publication and guidance on implementation; Develop and submit to the Minister of Defense to promulgate national technical regulations for civil cryptographic products and services, designate and manage the activities of organizations certifying conformity for civil cryptographic products and services; Quality management of civil cryptographic products and services.

8. Provincial People's Committees develop, promulgate and guide the implementation of local technical regulations on network information security; Manage the quality of network information security products and services in the area.

Article 39. Assessment of conformity with standards and regulations on network information security

1. Assessment of conformity with standards and regulations on network information security is carried out in the following cases:

a) Before organizations or individuals put cyber information security products into circulation on the market, they must certify or declare conformity and use conformity marks;

b) Serving state management activities on network information security.

2. The assessment of conformity with standards and regulations on network information security serving important national information systems and state management activities on network information security is carried out at a conformity certification organization designated by the Minister of Information and Communications.

3. The assessment of standard and regulation conformity for civil cryptographic products and services is carried out at a conformity certification organization designated by the Minister of National Defense.

4. Recognition of results of assessment of conformity with standards and regulations on network information security between Vietnam and other countries and territories, between Vietnam's conformity certification organization and conformity certification organizations of other countries and territories is carried out in accordance with the provisions of law on standards and technical regulations.

Chapter V
BUSINESS IN THE FIELD OF CYBER INFORMATION SECURITY

Section 1
ISSUING LICENSES TO BUSINESS CYBER INFORMATION
SECURITY PRODUCTS AND SERVICES

Article 40. Business in the field of network information security

1. Business in the field of network information security is a conditional business line. Business in the field of network information security includes trading in network information security products and trading in network information security services.

2. Enterprises trading in network information security products and services specified in Article 41 of this Law must have a License to trade in network information security products and services issued by a competent state agency. The term of the License to trade in network information security products and services is 10 years.

3. The business of network information security products and services must comply with the provisions of this Law and other relevant laws.

Business conditions, procedures for granting licenses to trade in civil cryptographic products and services, the export and import of civil cryptographic products, responsibilities of enterprises trading in civil cryptographic products and services, and the use of civil cryptographic products and services comply with the provisions of Chapter III of this Law.

Business conditions, order and procedures for granting business licenses for electronic signature authentication services comply with the provisions of law on electronic transactions.

Article 41. Products and services in the field of network information security

1. Network information security services include: a) Network information security testing and assessment services; b) Information security services do not use civil codes; c) Civil cryptography services; d) Electronic signature authentication service; d) Network information security consulting services; e) Network information security monitoring service; g) Network information security incident response service; h) Data recovery services; i) Services for preventing and combating cyber attacks; k) Other network information security services.

2. Network information security products include:

- a) Civil cryptographic products;
- b) Products for testing and evaluating network

information security; c) Network information security monitoring products;

d) Products to prevent attacks and intrusions;

d) Other network information security products.

3. The Government shall detail the list of network information security products and services specified in Point k, Clause 1 and Point dd, Clause 2 of this Article.

Article 42. Conditions for issuance of License to trade in network information security products and services

1. Enterprises are granted a License to trade in cyber information security products and services, except for products and services specified in Points a, b, c, d, Clause 1 and Point a, Clause 2, Article 41 of this Law, when they fully meet the following conditions: a) In accordance with the national cyber information security strategy, planning and development

plan; b) Have a system of equipment and facilities appropriate to the scale of providing network information security products and

services; c) Have a management, administration, and technical team that meets professional information security

requirements; d) Have a suitable business plan.

2. Enterprises are granted a Business License for network information security inspection and assessment services when they fully meet the following conditions:

a) Conditions specified in Clause 1 of this Article;

b) Is an enterprise legally established and operating in the territory of Vietnam, except for enterprises with foreign investment;

c) The legal representative, management, executive and technical team are Vietnamese citizens permanently residing in Vietnam;

d) Have a technical plan in accordance with standards and technical regulations;

d) Have a plan to secure customer information during the service provision process;

e) Management, administration, and technical team have diplomas or professional certificates in information security testing and assessment.

3. Enterprises are granted an information security service business license without using civil cryptography when they fully meet the following conditions:

a) Conditions specified in Points a, b, c, d and dd, Clause 2 of this Article; b) The executive and technical management team has diplomas or professional certificates in information security.

4. The Government regulates this Article in detail.

Article 43. Application dossier for a License to trade in network information security products and services

1. Enterprises applying for a License to trade in network information security products and services submit an application for a License at the Ministry of Information and Communications.

2. Dossier to request a License to trade in network information security products and services is made into five sets, including:

a) Application for a License to trade in network information security products and services, clearly stating the type of network information security products and services to be traded;

b) Copy of Business Registration Certificate, Investment Registration Certificate or other documents of equivalent value;

c) Explanation of technical equipment system ensuring compliance with legal regulations;

d) Business plan including scope, objects providing products and services, standards and quality of products and services;

d) Copies of diplomas or professional certificates in information security of the management, executive and technical team.

3. In addition to the papers and documents specified in Clause 2 of this Article, an application for a Business License for information security testing and assessment services or information security services without using civil cryptography must also include:

a) Criminal record of the legal representative and the management, executive and technical team;

b) Technical plan;

c) Plan to secure customer information during service provision.

Article 44. Appraisal of documents and issuance of License to trade in network information security products and services

1. Within 40 days from the date of receiving complete dossiers, the Ministry of Information and Communications shall preside over and coordinate with relevant ministries and branches to appraise and issue the License to trade in network information security products and services, except for trading in products and services specified in Point c, Point d, Clause 1 and Point a, Clause 2, Article 41 of this Law; In case of refusal, it must be notified in writing and clearly state the reason.

2. The license to trade in network information security products and services has the following main contents:

- a) Business name, business transaction name in Vietnamese and foreign languages (if any); Head office address in Vietnam;
- b) Name of legal representative;
- c) License number, license issuance date, license expiration date;
- d) Network information security products and services are permitted for business.

3. Enterprises that are granted a Business License for network information security products and services must pay fees in accordance with the law on fees and charges.

Article 45. Amendment, supplement, extension, temporary suspension, revocation and re-issuance of the License to trade in network information security products and services

1. Amendments and supplements to the Business License for network information security products and services are carried out in cases where the licensed enterprise changes its name, changes its legal representative or changes or supplements the network information security products and services it provides.

Enterprises are responsible for submitting dossiers requesting amendments and supplements to License content at the Ministry of Information and Communications. The dossier is made into two sets, including an application to amend and supplement the content of the License, a report detailing the content of the request for amendment and supplement and other relevant documents.

Within 10 working days from the date of receipt of complete documents, the Ministry of Information and Communications shall appraise, amend, supplement and re-issue the License to the enterprise; In case of refusal, it must be notified in writing and clearly state the reason.

2. In case the License to trade in information security products and services is lost or damaged, the enterprise shall submit an application for re-issuance of the License, clearly stating the reason, to the Ministry of Information and Communications. Within 05 working days from the date of receipt of the application, the Ministry of Information and Communications shall review and re-issue the License to the enterprise.

3. Enterprises that do not violate the law on trading in network information security products and services may renew their License to trade in network information security products and services once with an extension period of no more than 01 year. Dossier requesting license renewal must be sent to the Ministry of Information and Communications no later than 60 days before the license expiration date. Dossier requesting license extension is made in two sets, including:

- a) Application for license renewal;
- b) License to sell network information security products and services in effect;
- c) Report on the enterprise's activities for the most recent 02 years.

Within 20 days from the date of receipt of complete documents, the Ministry of Information and Communications shall evaluate, decide to extend and re-issue the License to the enterprise; In case of refusal, it must be notified in writing and clearly state the reason.

4. Enterprises are temporarily suspended from trading in network information security products and services for a period of not more than 06 months in the following cases:

- a) Providing services inconsistent with the content stated on the License;
- b) Failure to meet one of the conditions specified in Article 42 of this Law;
- c) Other cases as prescribed by law.

5. Enterprises have their License to sell network information security products and services revoked in the following cases:

- a) Failure to provide services within 01 year from the date of issuance of the License without a valid reason;
- b) The license has expired;
- c) At the end of the suspension period, the enterprise fails to overcome the reasons specified in Clause 4 of this Article.

Article 46. Responsibilities of enterprises trading in network information security products and services

- 1. Manage records and documents on technical and technological solutions of products.
- 2. Prepare, store and secure customer information.
- 3. Annually report to the Ministry of Information and Communications on the situation of business, export and import of cyber information security products and services before December 31.
- 4. Refuse to provide network information security products and services when detecting that organizations or individuals violate the law on using network information security products and services, or violate agreed commitments on using products and services provided by the enterprise.
- 5. Temporarily suspend or stop providing network information security products and services to ensure national defense, national security, social order and safety at the request of competent state agencies.
- 6. Coordinate and create conditions for competent state agencies to implement professional measures when required.

Section 2

IMPORT MANAGEMENT OF CYBER INFORMATION SECURITY PRODUCTS

Article 47. Principles for management of import of cyber information security products

- 1. Import management of cyber information security products is carried out in accordance with the provisions of this Law and other relevant laws.
- 2. The import of cyber information security products by agencies, organizations and individuals enjoying diplomatic privileges and immunities shall comply with the provisions of law on customs, law on privileges and immunities for foreign diplomatic missions, consulates and representative offices of intergovernmental international organizations in Vietnam.

3. In case Vietnam does not have corresponding technical regulations on cyber information security for imported cyber information security products, international agreements and treaties to which the Socialist Republic of Vietnam is a member shall apply.

Article 48. Products imported under license in the field of network information security

1. When importing network information security products on the List of imported network information security products under a license prescribed by the Government, the enterprise must have a License to import network information security products issued by a competent state agency.

2. Organizations and enterprises importing cyber information security products must carry out certification and declaration of conformity before importing according to the provisions of Article 39 of this Law.

3. Organizations and businesses are granted a License to import cyber information security products when they fully meet the following conditions:

- a) Have a License to trade in network information security products;
- b) Cyber information security products must be certified and declared conformity according to the provisions of Article 39 of this Law;
- c) The object and purpose of using cyber information security products are not harmful to national defense, national security, social order and safety.

4. The Ministry of Information and Communications regulates in detail the order, procedures, and dossiers for granting a License to import cyber information security products under the license.

Chapter VI

DEVELOPING HUMAN RESOURCES FOR CYBER INFORMATION SECURITY

Article 49. Training and professional development on network information security

1. Information system administrators are responsible for training and fostering knowledge and skills for management and technical staff on network information security.

2. Officers in charge of network information security are arranged and created working conditions suitable to their expertise, and given priority in professional training in network information security.

3. The State encourages organizations and individuals to invest, enter into joint ventures, and associate with other organizations to invest in building higher education institutions and vocational education institutions to train human resources in the field of network information security.

4. The Ministry of Home Affairs shall preside over and coordinate with the Ministry of Information and Communications, relevant ministries and branches to develop plans and organize training and fostering knowledge and skills in cyber information security for officials, civil servants and public employees.

Article 50. Diplomas and training certificates in network information security

1. Higher education institutions and vocational education institutions, within the scope of their duties and powers, issue diplomas and training certificates in cyber information security.

2. The Ministry of Education and Training shall preside over and coordinate with the Ministry of Information and Communications and relevant ministries and branches to recognize higher education degrees in cyber information security issued by foreign organizations.

3. The Ministry of Labor, War Invalids and Social Affairs shall preside over and coordinate with the Ministry of Information and Communications, relevant ministries and branches to recognize vocational education diplomas and certificates in cyber information security issued by foreign organizations.

Chapter VII

STATE MANAGEMENT OF CYBER INFORMATION SECURITY

Article 51. Content of state management of network information security

1. Develop strategies, planning, plans and policies in the field of network information security; Develop and direct the implementation of the national program on cyber information security.

2. Promulgate and organize the implementation of legal documents on network information security; develop and publish national standards and promulgate technical regulations on network information security.

3. State management of civil cryptography.

4. Manage the assessment and announcement of compliance with standards and regulations on network information security.

5. Manage information system safety supervision.

6. Appraisal of network information security in information system design documents.

7. Propagate and disseminate laws on network information security.

8. Manage business activities of network information security products and services.

9. Organize research and application of science and technology on network information security; develop human resources for network information security; Training specialized staff on network information security.

10. Check, inspect, resolve complaints and denunciations, and handle violations of the law on network information security.

11. International cooperation on network information security.

Article 52. Responsibility for state management of network information security

1. The Government unifies state management of network information security.
2. The Ministry of Information and Communications is responsible before the Government for implementing state management of network information security, and has the following tasks and powers:
 - a) Promulgate or develop and submit to competent authorities for promulgation legal documents, strategies, planning, plans, national standards, national technical regulations on network information security;

b) Appraisal of network information security in information system design documents; c) Manage the safety supervision of information systems nationwide, except for the information systems specified in Point c, Clause 3 and Point b, Clause 5 of this Article;

- d) Manage assessment of network information security;
- d) Issuing License to trade in network information security products and services, License to import information security products, except for civil cryptographic products and services; e) Research and apply science and technology on network information security; training, fostering and developing human resources;
- g) Manage and implement international cooperation on network information security;
- h) Check, inspect, resolve complaints and denunciations and handle violations of law on network information security;
- i) Preside and coordinate with ministries, branches, provincial People's Committees and relevant businesses in ensuring network information security;
- k) Organize propaganda and dissemination of laws on network information security; l) Annually report to the Government on network information security activities.

3. The Ministry of National Defense has the following tasks and powers:

- a) Promulgate or develop and submit to competent authorities for promulgation legal documents, strategies, planning, plans, national standards, national technical regulations on network information security in the fields managed by the Ministry of National Defense;
- b) Check, inspect, resolve complaints and denunciations and handle violations of the law in activities to ensure network information security in the fields managed by the Ministry of National Defense;

c) Implement management of safety supervision of information systems under the Ministry of National Defense.

4. The Government Cipher Committee assists the Minister of National Defense in performing state management of civil cryptography, with the following tasks:

- a) Develop and submit to competent authorities for promulgation legal documents on civil cryptography management;
- b) Preside and coordinate with relevant ministries and branches to develop and submit to competent state agencies to promulgate national standards and national technical regulations for civil cryptography products and services;
- c) Managing business activities and using civil codes; quality management of civil cryptographic products and services; Managing the assessment and announcement of standard and regulation conformity for civil cryptographic products and services;

d) Develop and submit to competent authorities for promulgation the List of civil cryptographic products and services and the List of civil cryptographic products exported and imported under license;

d) Issuing License to trade in civil cryptographic products and services, License to export and import civil cryptographic products;

e) Check, inspect, resolve complaints and denunciations and handle violations of law in business activities and use of civil codes;

g) International cooperation on civil cryptography.

5. The Ministry of Public Security has the following tasks and powers:

a) Preside and coordinate with relevant ministries and branches to develop and submit to competent authorities for promulgation or promulgate according to authority and guide the implementation of legal documents on protecting state secrets, preventing and combating cybercrime, taking advantage of networks to violate national security, social order and safety;

b) Implement management of safety supervision of information systems under the Ministry of Public Security;

c) Organize, direct and deploy crime prevention and control, organize the investigation of cybercrime and other violations of law in the field of cyberinformation security;

d) Coordinate with the Ministry of Information and Communications, relevant ministries and branches to check and inspect network information security, and handle violations of the law on network information security according to authority.

6. The Ministry of Home Affairs is responsible for organizing training and fostering cyber information security knowledge and skills for officials, civil servants and public employees.

7. The Ministry of Education and Training is responsible for organizing training and disseminating knowledge about network information security in higher education institutions.

8. The Ministry of Labor, War Invalids and Social Affairs is responsible for organizing training, fostering and disseminating knowledge about network information security in vocational education establishments.

9. The Ministry of Finance is responsible for guiding and allocating funds to carry out the task of ensuring network information security according to the provisions of law.

10. Ministries and ministerial-level agencies, within the scope of their duties and powers, are responsible for managing network information security of their sectors and coordinating with the Ministry of Information and Communications to implement state management of network information security.

11. Provincial People's Committees, within the scope of their duties and powers, perform state management of network information security in their localities.

Chapter VIII
IMPLEMENTATION
PROVISIONS

Article 53. Effectiveness of implementation

This law takes effect from July 1, 2016.

Article 54. Detailed regulations

The Government and competent state agencies shall detail the assigned articles and clauses in the Law.

This Law was passed by the 13th National Assembly of the Socialist Republic of Vietnam, 10th session, on November 19, 2015./.

CHAIRMAN OF THE NATIONAL ASSEMBLY

Nguyen Sinh Hung